

United States Code Annotated

Title 42. The Public Health and Welfare

Chapter 45. Fair Housing (Refs & Annos)

Subchapter I. Generally (Refs & Annos)

42 U.S.C.A. § 3617

§ 3617. Interference, coercion, or intimidation

Currentness

It shall be unlawful to coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of, or on account of his having exercised or enjoyed, or on account of his having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by [section 3603](#), [3604](#), [3605](#), or [3606](#) of this title.

CREDIT(S)

([Pub.L. 90-284](#), Title VIII, § 818, formerly § 817, Apr. 11, 1968, 82 Stat. 89; renumbered § 818 and amended [Pub.L. 100-430](#), §§ 8(1), 10, Sept. 13, 1988, 102 Stat. 1625, 1635.)

[Notes of Decisions \(156\)](#)

O’CONNOR’S CROSS REFERENCES

See also Prop. Code §301.171.

O’CONNOR’S ANNOTATIONS

Wetzel v. Glen St. Andrew Living Cmty., LLC, 901 F.3d 856, 859 (7th Cir.2018). “[P] sued [D], alleging that it failed to provide her with non-discriminatory housing and that it retaliated against her because of her complaints, each in violation of the [FHA]. [D] insists that the [FHA] affords [P] no recourse, because it imposes liability only on those who act with discriminatory animus, an allegation [P] had not expressly made of any defendant. ... We read the FHA more broadly. Not only does it create liability when a landlord intentionally discriminates against a tenant based on a protected characteristic; it also creates liability against a landlord that has actual notice of tenant-on-tenant harassment based on a protected status, yet chooses not to take any reasonable steps within its control to stop that harassment.” See also *Francis v. Kings Park Manor, Inc.*, 992 F.3d

67, 75 (2d Cir.2021) (deliberate indifference may be used to establish liability under FHA when D exercises substantial control over context in which harassment occurs and over harasser).

Bloch v. Frischholz, 587 F.3d 771, 781-82 (7th Cir.2009). “Whether a violation of [42 U.S.C.] §3617 can exist without a violation of [42 U.S.C.] §3604 or any other FHA provision is a question we have routinely reserved. ... In some instances, we have held that the circumstances of the case make §§3604 and 3617 coextensive--a violation of one necessarily means a violation of the other. [H]owever, that need not be the case. ... To hold otherwise would make §3617 entirely duplicative of the other FHA provisions.... Coercion, intimidation, threats, or interference with or on account of a person’s exercise of his or her [42 U.S.C.] §§3603-3606 rights can be distinct from outright violations of §§3603-3606. [¶] [I]n light of our view that §3604 prohibits discriminatory evictions, it follows that *attempted* discriminatory evictions can violate §3617’s prohibition against interference with §3604 rights. Though §3604 requires that the plaintiffs’ dwelling be made truly unavailable, or that defendants deprived plaintiffs of their privilege to inhabit their dwelling, the text of §3617 is not so limited. ... A claim for coercion, intimidation, threats, and interference with or on account of plaintiff’s §3604 rights does not require that the plaintiff actually vacate the premises. *At* 783: To prevail on a §3617 claim, a plaintiff must show that (1) she is a protected individual under the FHA, (2) she was engaged in the exercise or enjoyment of her fair housing rights, (3) the defendants coerced, threatened, intimidated, or interfered with the plaintiff on account of her protected activity under the FHA, and (4) the defendants were motivated by an intent to discriminate.” *See also Gilead Cmty. Servs. v. Town of Cromwell*, 112 F.4th 93, 99 (2d Cir.2024) (P alleging retaliation under §3617 must show that D took adverse action against P and causal connection exists between protected activity and adverse action, which is satisfied when retaliatory motive plays part in causing adverse action); ***Morris v. West Hayden Estates First Addition Homeowners Ass’n***, 104 F.4th 1128, 1142-43 (9th Cir.2024) (§3617 is broad but not all-encompassing; neighborly squabbles alone do not create a cause of action).

42 U.S.C.A. § 3617, 42 USCA § 3617

Current through P.L. 119-36. Some statute sections may be more current, see credits for details.